IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A.No.280/2019 in
C.P.(CAA)No.76/BB/2017
Under Section 5 of the Limitation Act, 1963
R/w. Rule 11 of the NCLT Rules, 2016

In the matter of:

M/s. Puma Sports India Private Limited
Rep. by its Authorised Signatory
Shri Madhuresh Singh
No. 509, CMH Road,
Indira Nagar,
Bengaluru – 560 038 - Applicant/Transferee Company

Date of Order: 31st July, 2019

Coram: 1. Hon'ble Shri Rajeswara Rao Vittanala, Member (Judicial)
2. Hon'ble Dr. Ashok Kumar Mishra, Member (Technical)

Parties/Counsels Present:

For the Applicant : Shri Anind Thomas along with
Shri Amogh C.A

O R D E R

Per: Dr. Ashok Kumar Mishra, Member (Technical)

1. I.A.No.280/2019 in C.P. (CAA)No.76/BB/2017 is filed by M/s. Puma Sports India Private Limited ('Applicant/Transferee Company') Under Section 5 of Limitation Act 1963, R/w Rule 11 of NCLT Rules, 2016, by inter alia, seeking to grant further period of 30 days to file a certified copy of the order dated 20.03.2019 and associated documents, with the Registrar of Companies, Karnataka, Bengaluru.

2. Heard Shri Anind Thomas along with Shri Amogh C.A, learned Counsel for the Applicant. We have carefully perused the pleadings of the party and extant provisions of law.

3. Learned Counsel for the Applicant submits that Applicant made an Application seeking certified copy of the Order dated 20.03.2019 passed in C.P.(CAA)No.76/BB/2017, Order was made ready on April 3, 2019, the Applicant collected the same only on April 8, 2019, after having paid the deficit copying fee. Therefore, a copy of the Order was obtained by the Applicant on April 8, 2019 and the copy has to be filed by 08.04.2019 and the non-filing of the certified copy of the Order with the ROC within the 30 days timelines as directed by this Tribunal, is not intentional but due to bonafide reasons.

4. Learned Counsel for the Applicant further submits that due to administrative reasons such as the in-house Company Secretary of the Applicant having resigned and the position being vacant and official travel by the authorized representatives of the Applicant, the Applicant was not able to file the certified copy of the order with the ROC within the stipulated period of 30 days from the date of the order.

5. We are convinced with the reasons given by the Applicant and we are inclined to allow the interim application by granting further Thirty (30) days and Applicant is permitted to file a certified copy of the order dated March 20, 2019 along with associated documents, with the Registrar of Company, Karnataka, and Bengaluru.

6. Hence, I.A.No.280/2019 in C.P. (CAA)No.76/BB/2017 is hereby allowed by granting further thirty (30) days time and permitting to file a certified copy of the order dated March 20, 2019 along with associated documents, with the Registrar of Company, Karnataka, Bengaluru.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RAJESWARA RAO VITTANALA)
MEMBER, JUDICIAL

Shruthi